

23STCV31116 23STCV31116

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Case Number: 23STCV31116 Hearing Date: August 6, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

DARRELL CHARLES JONES,

Plaintiff,

vs.

SIMONE SHAH, et al.,

Defendants.

Case No.:

23STCV31116

Hearing Date:

August 6, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT LEXANDER RIVKIN, INDIVIDUALLY AND
AS TRUSTEE OF THE RIVKIN OF LAM TRUST'S MOTION FOR SUMMARY ADJUDICATION

Background

On December 20, 2023,
Plaintiff Darrell Charles Jones ("Plaintiff") filed the
instant action against Defendant Simone Shah. On December 29, 2023,
Plaintiff filed the operative first amended complaint
against Defendants Simone Shah, individually and as Trustee of the
Simone Shah Trust ("Shah"), and Alexander Rivkin, individually and as
Trustee of the Rivkin of Lam Family Trust ("Rivkin") (jointly, "Defendants"), asserting eight causes of
action for (1) breach of contract, (2) breach of warranty of
habitability, (3) breach of covenant of quiet enjoyment, (4)
negligence, (5) wrongful eviction, (6) retaliatory eviction-common law,
(7) violation of California Civil Code §1940.2
and (8) violation of Los Angeles anti-harassment of tenants ordinance [Los
Angeles Municipal Code Article 5.3, § 45.30 et seq.].

Rivkin now moves for summary adjudication.
Plaintiff did not file an opposition.

Legal Standard

"[T]he party moving for summary judgment bears
the burden of persuasion that there is no triable issue of material fact and
that he is entitled to judgment as a matter of law." ((Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th
826, 850.) A triable issue of material fact exists if the evidence would
allow a reasonable trier of fact to find the underlying fact in favor of the
party opposing the motion in accordance with the applicable standard of proof.
(Ibid.)

"When deciding whether to grant summary
judgment, the court must consider all of the evidence set forth in the papers
(except evidence to which the court has sustained an objection), as well as all

reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” ((Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467); ((Code Civ. Proc., § 437c, subd. (c).)

A motion for summary judgment or adjudication’s function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” ((Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” ((Code Civ. Proc., § 437c, subd. (c)); ((see also Villa v. McFerren (1995) 35 Cal.App.4th 733, 741.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) As to each cause of action as framed by the complaint, the defendant moving for summary judgment or adjudication must satisfy the initial burden of proof by presenting affirmative evidence to disprove at least one essential element of the plaintiff’s cause of action, show that an element cannot be established, or establish an affirmative defense. ((Code Civ. Proc., § 437c, subd. (p)(2)); ((Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465.)

Once the moving defendant meets its burden for a particular cause of action, the burden shifts to the nonmoving plaintiff. ((Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Ibid.)

On a motion for summary judgment or adjudication, the moving party’s supporting documents are strictly construed, while the nonmoving party’s documents are liberally construed. (D’Amico v. Board of Medical Examiners (1974) 11

Cal.3d 1, 24.) Any “doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion.” (Ibid.)

Discussion

A. Allegations of the FAC

Plaintiff’s FAC alleges that, inter alia, he “was a lawful tenant at the real property located at 1672 S. Harvard Blvd., Unit 1, Los Angeles, California 90006 (hereinafter ‘the Property’).” (FAC, ¶ 9.) “In or around February 2016, Plaintiff entered into a written rental agreement with the former owner of the Property to live at the Property in exchange for payment of \$950.00 per month as rent.” (FAC, ¶ 11.) “Plaintiff is informed and believes and thereon alleges, that Defendant Shah purchased the Property in 2018 and became Plaintiff’s landlord at that time.” (FAC, ¶ 13.) “During Plaintiff’s tenancy at the Property and while Defendants owned and/or operated it, the Property was unsafe, unsanitary, unhealthy, uninhabitable, untenable, in a serious state of disrepair, and in gross violation of building, health and safety laws.” (FAC, ¶ 14.) Defendants performed construction on the property while Plaintiff lived there. (FAC, ¶ 18.)

Plaintiff alleges that “[d]uring Plaintiffs’ tenancy at the Property, Plaintiff made repeated requests for repairs to Defendants which were not addressed.” (FAC, ¶ 19.) “Instead of completing repairs, Defendants began a campaign in threats and intimidation designed to force Plaintiff to move from the Property.” (FAC, ¶ 20.) “As a result of Defendants’ actions and the conditions of the Property, Plaintiff is expected moved [sic] from the Property on January 15, 2024.” (FAC, ¶ 21.)

B. Evidence

Relevant to All Causes of Action

Defendant Shah purchased the Subject Property in 2018, and, at that time, she assumed the written residential rental agreement was a contract between Plaintiff and the prior owner, effectively becoming Plaintiff’s landlord. (FAC, ¶¶ 13, 23.) Rivkin purchased the property with Shah. (Ex. 6, 8:3-7.) Rivkin acts as a silent partner, while Shah manages and takes care of the properties. (Ex. 6, 12:9-22.) Rivkin and Plaintiff never entered into a contract with each other. (Ex. 3, p.

3.)

Rivkin does not recall receiving any communications from the City of Los Angeles regarding the property; however, even if he had, Rivkin forwarded communications about the property for Shah to address. (Ex. 6, 32:23-33:9.) Rivkin did not see paperwork associated with Plaintiff's eviction, nor did he recall Shah telling him that Plaintiff complained about living conditions. (Ex. 6, 33:18-34:4.) Shah did not share pictures with Rivkin of the property while it underwent construction. (Ex. 6, 34:5-6.)

Rivkin and Plaintiff have never spoken, met, or exchanged any form of communication. (Ex. 6, 7:16-23; Ex. 3, 108:14-16, 109:4-8.) Rivkin never threatened, intimidated, or lied to Plaintiff, never removed utilities from Plaintiff's name, never denied Plaintiff access to security codes, and never reduced or eliminated housing services for the property. (Ex. 3, pp. 3-4.)

Dwell management, of which Shah is the sole member, handled management-related issues such as maintenance and repair for the property. (Ex. 7, 39:17-40:19.) Shah generally handled interactions with tenants. (Ex. 7, 28:24-29:8.)

Plaintiff could not conclusively admit or deny that Rivkin did not intentionally fail to perform necessary repairs or maintenance and that Rivkin did not intentionally engage in any act or omission which interfered with Plaintiff's right to use or enjoy the property. (Ex. 3, pp. 4-5, Ex. 4, p. 26.) When asked in interrogatories for facts upon which Plaintiff based his responses to the request, he responded that "Responding Party does not know what Defendant's 'Intentions' were," and did not list any witnesses or documents to support his response. (Ex. 4, p. 26.)

Plaintiff also could not conclusively admit or deny that Rivkin did not engage in any act or omission that constitutes malice, a disregard of Plaintiff's rights, menacing, oppression, harassment, retaliatory eviction, or wrongful eviction. (Ex. 3, pp. 5-7.) When asked in interrogatories for facts upon which Plaintiff based these response, his response was solely that "Propounding party is part of the ownership team relating to the subject property and is responsible for the acts and omissions of the other owners and managers," and did not identify a specific document or parties that support his response other than his reference to all parties in

the case and all documents he produced. (Ex. 4, pp. 27-28.)

C. First

Cause of Action for Breach of Contract

“The standard elements of a claim

for breach of contract are ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom. [Citation.]’” (Wall St. Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Rivkin asserts that “Plaintiff

admitted that he and Rivkin did not enter into a contract, that it was Shah that assumed the lease, and Shah that became his landlord. Plaintiff [sic] admissions in this regard are conclusively established against him... Without privity, any cause of action sounding in breach of contract against Rivkin fails as a matter of law, and summary adjudication should be granted as to Plaintiff’s first causes of action brought against Rivkin for breach of contract.” (Mot., 8:21-9:3.)

The evidence demonstrates that

Rivkin and Plaintiff were never in privity of contract, and thus, Plaintiff cannot maintain a breach of contract cause of action against Rivkin. Accordingly, the motion for summary adjudication is granted as to the first cause of action.

D. Fifth

and Sixth Causes of Action for Wrongful Eviction and Retaliatory Eviction

“The admission of fact in a

pleading is a ‘judicial admission.’ Witkin describes the effect of such an admission: ‘An admission in the pleadings is not treated procedurally as evidence; i.e., the pleading need not (and should not) be offered in evidence, but may be commented on in argument and relied on as part of the case. And it is fundamentally different from evidence: It is a waiver of proof of a fact by conceding its truth, and it has the effect of removing the matter from the issues. Under the doctrine of ‘conclusiveness of pleadings,’ a pleader is bound by well pleaded material allegations or by failure to deny well pleaded material allegations.’” ((Valerio v. Andrew Youngquist Construction (2002) 103

Cal.App.4th 1264, 1271.) “In summary judgment or summary adjudication proceedings, ‘[a]dmissions of material facts made in an opposing party’s pleadings are binding on that party as “judicial admissions.” They are conclusive concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted, by the party whose pleadings are used against him or her.” ((St. Paul Mercury Ins. Co. v. Frontier Pacific Ins. Co. (2003) 111 Cal.App.4th 1234, 1248.)

“A defendant moving for summary judgment or summary adjudication need not conclusively negate an element of the plaintiff’s cause of action. [Citations.] Instead, the defendant may show through factually devoid discovery responses that the plaintiff does not possess and cannot reasonably obtain needed evidence.” ((Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 587.)

Plaintiff’s FAC alleges that “Defendants repeatedly threatened and lied to Plaintiff in order to force Plaintiff to vacate the Property without [sic] any valid basis to make such demands,” and “Defendants committed the acts alleged herein against Plaintiff with the intent to retaliate against Plaintiff for exercising his rights under the law.” (FAC, ¶¶ 50, 58.)

Rivkin asserts that “Plaintiff’s wrongful eviction and retaliatory eviction causes of action are based on the allegation that Defendants ‘repeatedly threatened and lied to Plaintiff in order to force Plaintiff to vacate the Property,’ which plaintiff claims was retaliatory and ‘without any valid basis to make such demands’ FAC, ¶50, p. 10, Ins. 1-2, FAC ¶58, p. 10 In. 25-27. However, Plaintiff has admitted in deposition that he has never met or communicated with Rivkin, and has also admitted in his responses to Requests for Admissions that Rivkin never lied, threatened or intimidated him. Furthermore, Plaintiff’s factually devoid discovery responses, referring solely to generic and conclusory allegations regarding responsibilities of a member of an ownership team, and that do not point to any acts or omissions of Rivkin, further demonstrate that he does not possess, and cannot obtain, evidence to support his claims for retaliatory eviction and wrongful eviction.” (Mot., 9:10-19 [emphasis omitted].)

The Court finds that Rivkin’s

evidence demonstrates that Rivkin never communicated with Plaintiff, so Plaintiff cannot establish his allegations that Rivkin threatened, lied to, and retaliated against Plaintiff. Plaintiff's discovery responses also demonstrate he is unable to affirmatively state that Rivkin wrongfully and retaliatorily evicted Plaintiff. Accordingly, summary adjudication is proper for the fifth and sixth causes of action.

E. Seventh

Cause of Action for Violation of Civil Code Section
1940.2

Plaintiff's FAC alleges that "Defendants lied to and threatened Plaintiff to influence him to vacate a dwelling," and "these actions, ... constitute the use of force, willful threats, or menacing conduct undertaken by Defendants against Plaintiff." (FAC, ¶¶ 63-64.)

Rivkin asserts that "[s]imilar to his claims for retaliatory and wrongful eviction, Plaintiff's claim for Violation of Civil Code Section 1940.2 is based on the claim that defendants 'lied to and threatened Plaintiff to vacate a dwelling.' FAC, ¶63, p. 11, ln. 18. However, plaintiff has again admitted in deposition that he has never met or communicated with Rivkin, and has also admitted in his responses to Requests for Admissions that Rivkin never lied, threatened or intimidated him. Furthermore, Plaintiff's factually devoid discovery responses, referring solely to generic and conclusory allegations regarding Rivkin's responsibility as being part of an ownership team, and that do not point to any acts or omissions of Rivkin, further demonstrate that he does not possess, and cannot obtain, evidence to support his claims for retaliatory eviction and wrongful eviction." (Mot., 10:6-15 [emphasis omitted].)

Because Plaintiff and Rivkin have never communicated, Rivkin could not have threatened and lied to Plaintiff. Moreover, Plaintiff's discovery responses confirm he cannot ascertain evidence that Rivkin acted in such a manner. Accordingly, the motion for summary adjudication is granted as to the seventh cause of action.

F.

Eighth Cause of Action for Violation of the Los
Angeles Anti-Harassment of Tenants Ordinance

Chapter IV, Article 5.3, section 45.33 of the Los Angeles Municipal Code defines tenant harassment “as a landlord’s knowing and willful course of conduct directed at a specific tenant or tenants that causes detriment and harm, and that serves no lawful purpose.”

Plaintiff’s FAC alleges that “Defendants violated the above code sections by taking the following actions: a. Removing utilities from Plaintiff’s name without Plaintiff’s knowledge or consent; b. Refusing to complete required repairs including repairs to the Property’s heating system; c. Using lies and intimidation in order to force Plaintiff to vacate the Property; and d. Denying Plaintiff access codes to security gates on the Property.” (FAC, ¶ 70.)

Rivkin asserts that “plaintiff has again admitted in deposition that he has never met or communicated with Rivkin, and has also admitted in his responses to Requests for Admissions that Rivkin never removed utilities, lied, intimidated or denied access to codes. With respect to [the] repair issue, Rivkin testified that his role was as investor and silent partner, with Shah managing the property and taking care of everything. With respect to plaintiff’s discovery responses regarding the repair issue, such responses were factually devoid, referring solely to a generic statement regarding Rivkin’s responsibility as part of an ownership team, as opposed to setting forth any specific facts of evidence that would demonstrate Rivkin’s alleged ‘knowing and willful’ refusal to complete repairs. Such factually devoid responses make clear that Plaintiff does not possess, and cannot obtain, evidence to support his claim for tenant harassment.” (Mot., 11:7-16 [emphasis omitted].)

Rivkin has not had contact with Plaintiff. Plaintiff also admits that Rivkin never removed Plaintiff’s utilities, denied him access codes, or reduced housing services. Plaintiff also was unable to confirm that Rivkin harassed him or acted knowingly and willfully. Accordingly, Rivkin’s motion for summary adjudication is granted as to the eighth cause of action.

G.

Punitive Damages

Civil Code section 3294, subdivision (a), states that “[i]n an action for the breach of an obligation not arising from contract, where it

is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civil Code section 3294, subdivision (c)(2).)

Plaintiff’s FAC alleges that “Defendants’ conduct described herein further constitutes malice and a conscious disregard of Plaintiffs’ rights, thereby entitling Plaintiff to punitive damages in an amount to be proven as to those causes of action which allow for punitive damages.” (FAC, ¶¶ 34, 42, 53, 60.) Additionally, “Defendants’ conduct was willful, intentional, and done with oppression and malice against Plaintiffs, and with a total disregard for Plaintiff’s health, safety, and well-being.” (FAC, ¶ 66.)

Rivkin asserts that “plaintiff has admitted that Rivkin did not engage in the alleged acts of lying, threatening and intimidation that underlies the causes of action upon which he bases his claim for punitive damages. As to the repair and maintenance of the property, Rivkin has testified that his role was as investor and silent partner, with Shah managing the property and taking care of everything. While plaintiff may argue that the property was not properly maintained or repaired, this does not equal malice and oppression, and his discovery responses regarding the issues of malice and oppression are factually devoid, referring solely to a generic statement regarding Rivkin’s responsibility as part of an ownership team, as opposed to setting forth any specific facts of evidence that would demonstrate any such malice or oppression – which plaintiff must prove based on clear and convincing evidence. Plaintiff’s admissions, and his factually devoid responses, make clear that Plaintiff does not possess, and cannot obtain, evidence to support his claim for.” (Mot., 12:27-13:10.)

The Court finds that Rivkin demonstrates Plaintiff cannot meet the burden to establish punitive damages because Plaintiff’s discovery responses are devoid of evidence that Rivkin acted maliciously, oppressively, or interacted with Plaintiff. Accordingly, the Court grants Rivkin’s motion for summary adjudication as to Plaintiff’s request for punitive

damages.

Conclusion

Based on the foregoing, Rivkin's motion for summary adjudication is GRANTED as to the first, fifth, sixth, seventh, and eighth causes of action, as well as for the request for punitive damages.

Rivkin is ordered to give notice of this Order.

DATED: August 6, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court